

MASTER MANAGED SERVICES AGREEMENT

This Master Managed Services Agreement (this “Agreement”) is entered into as of the Effective Date stated in the applicable Order Form between Midwest Managed IT (“Provider”) and the client identified in the applicable Order Form (“Client”). Provider and Client may each be referred to as a “Party” and together as the “Parties.”

1. Order of Precedence; Contract Structure

This Agreement sets out the general legal terms governing Provider’s recurring managed IT services. Each signed Order Form, together with the Support Policy / SLA attached as Exhibit A and any selected add-on schedule, is incorporated into and governed by this Agreement.

If there is a conflict among the contract documents, the following order controls unless the parties expressly state otherwise in the relevant Order Form: (a) the Order Form, (b) this Agreement, and (c) the Support Policy / SLA.

2. Definitions

Covered Environment. the users, endpoints, servers, cloud tenants, network components, and other assets expressly listed or reasonably described in the applicable Order Form.

Managed Services. the recurring services expressly included in the applicable Order Form and no others.

Response Target. Provider’s target time for initial acknowledgment, intake, and triage of a properly submitted support ticket during stated Support Hours.

Support Hours. Monday through Friday, 9:00 a.m. to 6:00 p.m. Eastern Time, excluding Provider-observed holidays, unless the applicable Order Form states otherwise.

Third-Party Services. software, cloud services, telecommunications, internet connectivity, utilities, hardware, backup platforms, security tools, and vendor services provided by parties other than Provider.

3. Nature of Services; Remote-First Model

Provider delivers recurring managed IT services on a subscription basis for the Covered Environment described in the applicable Order Form. The services are designed to provide ongoing monitoring, maintenance, administration, security tooling, ticket-based support, and related remote assistance as expressly stated in the applicable Order Form.

This Agreement is not a break-fix arrangement, warranty program, insurer relationship, or guarantee of uninterrupted operations, complete cybersecurity protection, perfect uptime, or complete recoverability of data.

Unless an Order Form expressly states that onsite work is included, services are delivered remotely. Nothing in this Agreement creates an implied obligation for Provider to maintain local field staff, dispatch onsite personnel, or meet a physical arrival time.

4. Scope of Services; Changes; Out-of-Scope Work

Provider shall perform only the Managed Services expressly identified in the applicable Order Form. Services not expressly included are outside scope and billable at Provider’s then-current rates or under a separate statement of work.

Out-of-scope work includes, unless expressly included in writing: onsite labor; after-hours work; holiday work; project work; procurement; cabling; hardware installation or replacement; structured wiring; custom software development; compliance consulting; legal or regulatory advice; remediation of pre-existing conditions; unsupported or end-of-life systems; home networks and personal devices not listed in the Covered Environment; and line-of-business application support beyond ordinary vendor liaison.

If Client requests a material change in service levels, covered quantities, vendors, security stack, backup scope, cloud scope, or supported locations, the parties shall document the change through a revised Order Form, approved quote, or written change order.

5. Onsite Services; Geography; Travel

Onsite services, if requested by Client and accepted by Provider, are outside the recurring monthly services unless expressly included in the applicable Order Form.

Approved onsite services are subject to Provider's staffing, geography, travel availability, and scheduling constraints. Provider may decline onsite work outside its practical service area or fulfill such work through qualified subcontractors or field technicians.

Unless otherwise stated in writing, onsite work may be billed at Provider's then-current rates, plus travel time, mileage, lodging, third-party technician costs, parking, tolls, and any applicable minimum service charge.

6. Support Requests; Ticketing; Response Targets

Client shall submit support requests through Provider's designated ticketing, portal, email, or emergency channel. Provider may require ticket creation before commencing non-emergency support work.

Response Targets apply only to Provider's initial acknowledgment and triage of a properly submitted support ticket during Support Hours. Response Targets are not guarantees of final resolution, service restoration, onsite dispatch, workaround delivery, or completion within a specific time.

Provider may reasonably assign or adjust ticket priority based on business impact, number of affected users, security implications, availability of a workaround, completeness of information supplied by Client, and whether the affected system is within the Covered Environment.

Any service clock is tolled while Provider is waiting on Client information, credentials, approvals, vendor action, replacement hardware, internet restoration, or access to the affected systems.

7. Client Responsibilities

Client shall designate one or more authorized contacts with authority to approve changes, purchases, remediation actions, restore decisions, and communications regarding service incidents.

Client shall provide timely access to systems, credentials, premises, documentation, and vendor relationships reasonably necessary for Provider to perform the Managed Services.

Client shall maintain legally obtained and properly licensed software, vendor subscriptions, internet connectivity, electrical power, and environmental conditions reasonably necessary for the services.

Client shall not disable, interfere with, or circumvent Provider's monitoring, security, backup, remote management, ticketing, or alerting tools without Provider's written approval.

Client remains responsible for its business decisions, internal policies, user training, legal compliance obligations, data classification, records retention decisions, and approval of purchases or replacements.

8. Fees; Invoicing; Taxes

Client shall pay the recurring and non-recurring fees stated in the applicable Order Form. Unless the Order Form states otherwise, recurring fees are billed monthly in advance and non-recurring fees are billed when incurred.

All invoices are due within fifteen (15) days after invoice date. Client shall notify Provider in writing of any specific, good-faith invoice dispute within seven (7) days after invoice date, or the invoice will be deemed accepted.

Fees are exclusive of applicable sales, use, excise, communications, and similar taxes, which shall be paid by Client except for taxes measured solely by Provider's net income.

9. Late Payment; Suspension; Collection Costs

Overdue undisputed amounts accrue interest at the lesser of 1.5% per month or the maximum lawful rate. Provider may suspend all or part of the services on written notice if undisputed amounts remain unpaid for ten (10) days after the due date.

Provider may also suspend services immediately if Client's nonpayment, interference, or security posture materially risks harm to Provider, Provider's tools, or other clients, provided Provider gives prompt notice when commercially reasonable.

Client shall reimburse Provider for reasonable costs of collection, including court costs and reasonable attorney fees, incurred in collecting overdue undisputed amounts to the extent permitted by law.

10. Term; Renewal; Termination

This Agreement begins on the Effective Date of the first Order Form and continues until terminated in accordance with this Agreement. Each Order Form begins on its own start date and continues through its stated Initial Service Term.

After the Initial Service Term, an Order Form renews automatically for successive one-month renewal terms unless either Party gives at least thirty (30) days' written notice of non-renewal before the end of the then-current term.

Either Party may terminate for material breach if the breach is not cured within thirty (30) days after written notice, except that nonpayment, repeated security noncooperation, abusive conduct, or unauthorized tampering with managed systems may be subject to a shorter cure period of ten (10) days.

If Client terminates an Order Form without cause before the end of the Initial Service Term, Client shall pay: (a) all accrued but unpaid fees, (b) any non-cancelable third-party charges or pass-through costs committed for Client, and (c) as liquidated damages and not as a penalty, fifty percent (50%) of the remaining unpaid monthly recurring charges for the balance of the Initial Service Term. The parties agree this formula is intended as a reasonable pre-estimate of Provider's loss, recognizing that actual damages would be difficult to calculate at the time of contracting.

11. Third-Party Services; Procurement; Vendor Dependencies

Provider may recommend or resell Third-Party Services, but unless expressly stated otherwise in a signed writing, Provider is not the manufacturer, publisher, licensor, carrier, or utility for those services.

Provider is not responsible for outages, defects, price increases, feature changes, data loss, security incidents, support delays, policy changes, or end-of-life decisions caused by internet providers, utilities, cloud vendors, backup vendors, payment processors, Microsoft, Google, Huntress, or other third-party platforms.

When Provider acts as a procurement facilitator, Client remains bound by the third-party vendor's end user terms, usage restrictions, and service limitations.

12. Confidentiality

Each Party receiving Confidential Information from the other Party shall use that information only for performance of this Agreement, protect it with reasonable care, and not disclose it except to employees, contractors, advisers, insurers, or financing sources with a legitimate need to know and equivalent confidentiality obligations.

Confidential Information does not include information that is or becomes public through no breach of this Agreement, was already lawfully known, is independently developed without use of the other Party's Confidential Information, or is rightfully received from a third party without confidentiality restrictions.

A Party may disclose Confidential Information if required by law, subpoena, court order, or regulatory process, provided the receiving Party gives prompt notice when legally permitted and reasonably cooperates with efforts to limit disclosure.

13. Data, Backup, Security, and Recovery

Provider may supply monitoring, security tooling, managed endpoint protection, backup oversight, restore assistance, disaster recovery planning assistance, and related best-practice services as stated in the applicable Order Form. Those services reduce risk but do not guarantee prevention of all malware, ransomware, phishing, account compromise, downtime, corruption, deletion, or data loss events.

Unless the applicable Order Form expressly states otherwise, Client remains responsible for determining what data is critical, what retention period is required, whether a tested business continuity plan is needed, what recovery point and recovery time objectives are acceptable, and whether additional offline, immutable, air-gapped, or legal-hold solutions are required.

Provider's restore efforts are commercially reasonable assistance only. Successful restore, recovery, or continuity is dependent on the state of the source systems, backup integrity, third-party vendor performance, elapsed time, data corruption, scope of the incident, and factors outside Provider's control.

14. Warranties; Disclaimer

Provider warrants that it will perform the Managed Services in a commercially reasonable manner consistent with generally accepted industry practice for remote managed service providers.

Except for the express warranty in the preceding sentence, the services are provided 'as is' and 'as available,' and Provider disclaims all implied warranties, including merchantability, fitness for a particular purpose, and non-infringement.

Provider does not warrant uninterrupted service, error-free operation, prevention of every security incident, or compatibility of every third-party application, driver, network, or vendor environment.

15. Limitation of Liability

Neither Party shall be liable to the other for any lost profits, lost revenue, loss of goodwill, indirect damages, consequential damages, exemplary damages, punitive damages, special damages, or diminution-in-value damages arising out of or related to this Agreement, even if advised of the possibility of such damages.

Provider's aggregate liability arising out of or related to this Agreement shall not exceed the total fees actually paid by Client to Provider under the affected Order Form during the twelve (12) months immediately preceding the event giving rise to the claim.

The foregoing limitations do not limit: (a) Client's payment obligations, (b) either Party's liability for fraud, willful misconduct, or gross negligence to the extent such limitation is prohibited by law, (c) either Party's confidentiality obligations, or (d) Client's indemnity obligations under this Agreement.

16. Indemnification

Client shall defend, indemnify, and hold harmless Provider and its owners, employees, contractors, and agents from and against third-party claims, damages, losses, liabilities, judgments, settlements, costs, and reasonable attorney fees arising out of or related to: (a) Client's data, content, or instructions; (b) Client's unlawful, infringing, or non-compliant use of technology; (c) Client's failure to maintain required licenses or permissions; (d) bodily injury or property damage caused by Client's personnel or systems; or (e) Client's breach of this Agreement.

Provider shall defend and indemnify Client from third-party claims alleging that any Provider-created deliverable specifically developed for Client under a separate written statement of work infringes a United States intellectual property right, except to the extent the claim arises from Client content, Client instructions, third-party products, combinations not supplied by Provider, or Client's unauthorized modifications.

The indemnified Party shall promptly notify the indemnifying Party of the claim, reasonably cooperate in the defense, and permit the indemnifying Party to control the defense and settlement, provided no settlement admits fault or imposes non-monetary obligations on the indemnified Party without its consent.

17. Dispute Resolution; Governing Law; Venue

Before filing suit, the Parties shall first attempt in good faith to resolve any material dispute through business-level discussions between authorized representatives. This informal discussion period shall last at least ten (10) business days unless emergency injunctive relief is sought.

This Agreement is governed by the laws of the State of Indiana, without regard to its conflict-of-laws rules.

The Parties consent to exclusive jurisdiction and venue in the state courts located in Allen County, Indiana, and, if applicable, the federal court with jurisdiction there, for any dispute arising out of or related to this Agreement.

18. Miscellaneous

Neither Party may assign this Agreement without the other Party's prior written consent, except to an affiliate or in connection with a merger, asset sale, or sale of substantially all of its business, provided the assignee assumes this Agreement in writing.

Provider may use subcontractors and third-party tools in performing the services, provided Provider remains responsible for its subcontractors' performance of contracted obligations.

No waiver is effective unless in writing. Failure to enforce a provision once does not waive the right to enforce it later.

If any provision is held unenforceable, the remaining provisions remain in effect and shall be construed to best carry out the original commercial intent.

This Agreement, together with each Order Form and incorporated exhibit, constitutes the entire agreement between the Parties regarding its subject matter and supersedes prior proposals, discussions, and understandings.

The Parties agree that this Agreement and any Order Form may be executed electronically and in counterparts, each of which is deemed an original and all of which together constitute one instrument.

MIDWEST MANAGED IT	CLIENT
By: _____	By: _____
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____